

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #01	CCRB Case #: 201502100	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 03/11/2015 7:40 AM	Location of Incident: Street outside 92-13 147th Place	18 Mo. SOL 9/11/2016	Precinct: 103		
Date/Time CV Reported Fri, 03/20/2015 6:19 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 03/20/2015 6:19 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Mark Sinatra	04720	944174	NARCBQN
2. POM Daniel Ludemann	10721	938892	NARCBQN
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Ducarmel Pierre	05770	925922	NARCBQN
2. DT3 George Katris	1168	943427	NARCBQN
3. DT3 Dimitrios Roidis	07470	935638	NARCBQN
4. LT Philip Marks	00000	901913	NARCBQN
5. POM Eric Moy	04042	949373	NARCBQN

Officer(s)	Allegation	Investigator Recommendation
A . SGT Mark Sinatra	Abuse: Sgt. Mark Sinatra stopped the car in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Daniel Ludemann	Abuse: PO Daniel Ludemann stopped the car in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Daniel Ludemann	Force: PO Daniel Ludemann used physical force against § 87(2)(b)	C . Exonerated
D . SGT Mark Sinatra	Force: Sgt. Mark Sinatra used physical force against § 87(2)(b)	D . Exonerated
E . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b)	E . Officer(s) Unidentified
F . SGT Mark Sinatra	Abuse: Sgt. Mark Sinatra searched the car in which § 87(2)(b) was an occupant.	F . Unsubstantiated
G . POM Daniel Ludemann	Abuse: PO Daniel Ludemann searched the car in which § 87(2)(b) was an occupant.	G . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via the call processing system on March 20, 2015. On March 11, 2015, at approximately 7:40 am, § 87(2)(b) was waiting in his vehicle on Archer Avenue near 148th Street, in Queens. His friend § 87(2)(b) approached the vehicle and placed methadone into the car through the passenger's side window.

Shortly thereafter, a traffic officer told § 87(2)(b) that he was in a no-standing zone. § 87(2)(b) allegedly signaled, made a right turn, and parked in front of 92-13 147th Place. An unmarked RMP immediately pulled up behind § 87(2)(b)'s vehicle, and flashed its lights and siren to indicate that he was being stopped (**Allegations A and B**).

Security footage obtained from Choices Women's Medical Center captured this incident on video (06. Board Review), although only the front of § 87(2)(b)'s vehicle is visible within the frame. 

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Sgt. Mark Sinatra and PO Daniel Ludemann of Queens Narcotics approached the vehicle. PO Ludemann asked § 87(2)(b) for his license and registration. Both PO Ludemann and Sgt. Sinatra allegedly observed pills and a vial of liquid methadone in plain view inside the passenger compartment. § 87(2)(b) asked why he was being stopped. PO Ludemann did not answer the question and instead asked § 87(2)(b) to exit the vehicle. When § 87(2)(b) asked why PO Ludemann wanted him to exit the vehicle, PO Ludemann did not answer and opened the driver's side door, allegedly grabbed § 87(2)(b)'s forearm, pulled § 87(2)(b) from the vehicle, and led him to the rear. PO Ludemann attempted to pull § 87(2)(b)'s arms behind his back. § 87(2)(b) tensed his body and yelled, "What are you doing?" PO Ludemann and Sgt. Sinatra then both allegedly struck § 87(2)(b) in the head and the jaw (**Allegations C and D**). § 87(2)(b) fell to the ground but did not remember what caused him to do so. He landed on his chest and stomach, and either PO Ludemann or Sgt. Sinatra allegedly placed their knee on the back of his head (**also Allegations C and D**). While he was on the ground, one or both of the officers allegedly punched him in the head and kicked him in the left side of the ribs (**also Allegations C and D**). Either PO Ludemann or Sgt. Sinatra placed him in handcuffs and said, "Okay, now you're gonna get a fucking resisting arrest charge" (**Allegation E**).

Four more officers from Queens Narcotics then arrived on the scene: Lt. Phillips Marks and PO Eric Moy in an unmarked RMP, and Det. George Katris and Det. Dimitrios Roidis in the prisoner van. § 87(2)(b) was placed in the prisoner van and transported to the 103rd Precinct for processing. PO Ludemann and Sgt. Sinatra then searched the passenger compartment of the vehicle (**Allegations F and G**) and recovered the aforementioned narcotics. Five minutes after § 87(2)(b)'s arrest, § 87(2)(b) and his girlfriend, § 87(2)(b) were also arrested and charged with § 87(2)(b)

§ 87(2)(b) was ultimately charged with § 87(2)(b). § 87(2)(b) denied that officers recovered narcotics from his vehicle and, further, that he was charged with narcotics possession.

Mediation, Civil, and Criminal Histories:

- Due to § 87(2)(b)'s arrest this case was deemed unsuitable for mediation. § 87(2)(b) [§§ 86(1) (2)&(4), § 87(2)(g)]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

On June 18, 2015 the Office of the Comptroller notified the undersigned investigator that as of that date [§ 87(2)(b)] had not filed any notice of claim in regards to this incident.

Civilian and Officer CCRB histories:

- This is the first CCRB complaint filed by [§ 87(2)(b)] (02. Board Review).
- Sgt. Sinatra has been a member of the NYPD for 8 years and has been a subject in five prior cases (03. Board Review). In CCRB case # 201411322 it was alleged that Sgt. Sinatra stopped an individual without cause. That allegation was unsubstantiated. Sgt. Sinatra is also a subject in two other open CCRB cases: 201506377, in which a stop is pleaded against him, and 201506493, in which a vehicle stop, vehicle search, search, and refusal to provide name/shield are pleaded against him.
- PO Ludemann has been a member of the NYPD for ten years and has been a subject in four previous cases (04. Board Review). In CCRB case # 200913966 it was alleged that PO Ludemann told an individual to “shut the fuck up” before taking him to the ground and placing his foot on his back. Those allegations were unsubstantiated. In CCRB case # 201411322 it was alleged that PO Ludemann stopped an individual without cause. Both allegations were unsubstantiated. PO Ludemann is also the subject on one other open CCRB case: number 201506377, in which a stop is pleaded against him.

Potential Issues:

Neither [§ 87(2)(b)] nor [§ 87(2)(b)] provided verified statements to the investigation. On April 16, 2015 the undersigned investigator left a voicemail for [§ 87(2)(b)] at the phone number provided for him by [§ 87(2)(b)]. On April 17, 2015 the undersigned reached [§ 87(2)(b)] who stated he was not available and requested a call back on the same day. Later on April 17, 2015 a voicemail was left. On April 24, 2015 the undersigned investigator again attempted to contact [§ 87(2)(b)] whose voicemail box was full, and a letter was sent. On April 27, 2015 the undersigned again reached [§ 87(2)(b)] who was not able to schedule an interview due to his work schedule. On May 11, 2015 [§ 87(2)(b)] provided a phone statement. He also provided a telephone number for [§ 87(2)(b)]. On May 15, 2015, the undersigned investigator attempted to reach [§ 87(2)(b)] at that number but it was not in service. Neither [§ 87(2)(b)] nor [§ 87(2)(b)] stated that [§ 87(2)(b)] had witnessed any alleged misconduct, and therefore no further attempts to contact her were made.

Findings and Recommendations

Allegations not pleaded:

[§ 87(2)(g)]

[REDACTED]

Allegation A—Abuse of Authority: Sgt. Mark Sinatra stopped the car in which § 87(2)(b) was an occupant.

Allegation B—Abuse of Authority: PO Daniel Ludemann stopped the car in which § 87(2)(b) was an occupant.

§ 87(2)(b) testified that as he waited in his car on Archer Avenue near 148th Street, his friend § 87(2)(b) approached the passenger side, reached through the window, and placed a bag containing a quantity of methadone in the glove compartment. The methadone belonged to § 87(2)(b) but was not labeled with his name. § 87(2)(b) did not recall specifically if he and § 87(2)(b) made any physical contact but believed it was likely that they shook hands. They did not exchange any money. § 87(2)(b) was not initially forthcoming about this interaction with § 87(2)(b) or the presence of the methadone in his vehicle, but admitted to these facts after further questioning. After § 87(2)(b) walked away from § 87(2)(b)'s vehicle, a traffic officer told § 87(2)(b) that he was in a no-standing zone. § 87(2)(b) pulled away from the curb, signaled a right turn, and turned right onto 147th Place. He pulled up to an empty, legal parking space in front of 92-15 147th Place. Sgt. Sinatra and PO Ludemann immediately pulled up behind him in their RMP and stopped him.

PO Ludemann testified that § 87(2)(b) failed to signal his turn onto 147th Place and that he subsequently stopped § 87(2)(b)'s vehicle in front of 92-13 147th Place. Although Sgt. Sinatra and PO Ludemann were in the vicinity of the methadone clinic conducting narcotics enforcement and suspected § 87(2)(b)'s involvement in a narcotics transaction, the stop was predicated upon the VTL violation with which he was charged (10. Board Review).

According to *People v. Weishaupt* 2014 N.Y. App. Div. 4169; 2014 NY Slip Op 4259, police may validly stop a vehicle based on probable cause that the driver committed a traffic violation, regardless of the officer's underlying motivation or desire to conduct another investigation (11. Board Review).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation C—Force: PO Daniel Ludemann used physical force against § 87(2)(b)
Allegation D—Force: Sgt. Mark Sinatra used physical force against § 87(2)(b)

It is undisputed among § 87(2)(b), Sgt. Sinatra, and PO Ludemann that some degree of force was used against § 87(2)(b) before he was placed in handcuffs, and that the struggle took place at the rear of § 87(2)(b)'s vehicle.



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As mentioned above, the frame of the video (06. Board Review) captured only the front of § 87(2)(b)'s vehicle. However, at two points during the video, from 7:34:37 to 7:34:53 and again from 7:35:12 to 7:35:18, the vehicle rocks, revealing the moments when the struggle took place.

§ 87(2)(b) testified during his March 30, 2015 CCRB interview that PO Ludemann asked him to exit the vehicle and that he did not comply, but rather asked why he was being stopped. When PO Ludemann did not respond, § 87(2)(b) said he would not exit the vehicle. PO Ludemann then

allegedly opened the driver's side door, grabbed § 87(2)(b)'s left forearm, and pulled him from the vehicle. PO Ludemann then allegedly took hold of § 87(2)(b)'s arms and attempted to pull them behind his back. § 87(2)(b) testified that he tensed up, preventing PO Ludemann from placing him in handcuffs, and yelled, "What are you doing?" § 87(2)(b) did not have a clear recollection of the next moments but maintained that both PO Ludemann and Sgt. Sinatra struck him in the head and the left side of his jaw multiple times. Either PO Ludemann or Sgt. Sinatra took § 87(2)(b) to the ground but § 87(2)(b) did not remember how the officer did so. § 87(2)(b) landed on his chest and stomach and either PO Ludemann or Sgt. Sinatra placed his knee on § 87(2)(b)'s head. § 87(2)(b) was kicked in the left side of his ribs but did not see who did this. He was attempting to pull his arms up to cover his head but could not move them. One or both of the officers punched § 87(2)(b) on the left side of his head with a closed fist until he was placed in handcuffs. He did not recall exactly how many times he was struck and did not believe he ever lost consciousness as a result of being hit in the head. In a phone statement provided on March 23, 2015 § 87(2)(b) stated that he was also kicked in the face. However, he did not reiterate this allegation in his verified statement.

PO Ludemann testified that upon approaching § 87(2)(b) he observed loose pills on the passenger seat as well as a bottle of liquid methadone in the center console. Upon being asked, § 87(2)(b) said that the pills belonged to a friend. Additionally, § 87(2)(b) appeared to be sweating despite the cold weather. Due to his observations, PO Ludemann asked § 87(2)(b) to exit the vehicle. After being asked twice, § 87(2)(b) exited of his own power. PO Ludemann then informed § 87(2)(b) that he was being placed under arrest. He issued § 87(2)(b) a verbal command to place his hands behind his back and § 87(2)(b) failed to comply. PO Ludemann took his handcuffs in his left hand and reached out with his right to take hold of § 87(2)(b)'s wrist. § 87(2)(b) pushed PO Ludemann in the chest with his right arm and PO Ludemann stumbled backward a few steps. He then attempted a second time to take hold of § 87(2)(b)'s wrist and issued § 87(2)(b) a verbal command to stop resisting. Sgt. Sinatra grabbed § 87(2)(b)'s arms but PO Ludemann did not recall if Sgt. Sinatra issued § 87(2)(b) any verbal command. PO Ludemann testified that § 87(2)(b) held his hands at the front of his waist so that the officers could not cuff them behind his back. PO Ludemann and Sgt. Sinatra attempted to pull § 87(2)(b)'s hands behind his back as he twisted his body back and forth. The three men lost balance and fell to the ground. § 87(2)(b) landed on his stomach and held his hands underneath his body so that the officers could not place him in handcuffs. PO Ludemann did not recall if § 87(2)(b) fell with his hands under his torso or if he placed them there after falling. Sgt. Sinatra and PO Ludemann used force to pull § 87(2)(b)'s hands out from under his chest and behind his back. § 87(2)(b) was struggling and attempting to pull his arms away from the officers. Neither PO Ludemann nor Sgt. Sinatra placed their knee on § 87(2)(b)'s head, kicked him, or punched § 87(2)(b) on the left side of his head. PO Ludemann and Sgt. Sinatra eventually placed § 87(2)(b) in handcuffs.

Sgt. Sinatra testified that upon approach, he observed a bottle of liquid methadone and an orange prescription bottle of pills, neither of which had affixed prescription labels, in the center console. Sgt. Sinatra corroborated that PO Ludemann asked § 87(2)(b) to exit the vehicle and he did so of his own power, at which point he was informed that he was going to be placed under arrest. § 87(2)(b) pushed PO Ludemann in the chest with both arms, causing PO Ludemann to stumble backward a few steps. § 87(2)(b) assumed a boxing stance as if he meant to fight the officers. PO Ludemann attempted to grab § 87(2)(b)'s arms in order to prevent him from throwing any punches. PO Ludemann and Sgt. Sinatra then both grabbed § 87(2)(b)'s arms in order to restrain him so that they could place him in handcuffs. Sgt. Sinatra maintained that all three men then fell to the ground and that § 87(2)(b) on his back and facing the officers, began throwing punches. § 87(2)(b) punched Sgt. Sinatra but Sgt. Sinatra did not remember where or how many times. He believed § 87(2)(b)

§ 87(2)(b) punched PO Ludemann but did not recall specifically. Sgt. Sinatra punched § 87(2)(b) to prevent § 87(2)(b) from injuring him or PO Ludemann. He did not recall how many times he punched § 87(2)(b) where he punched him, or if PO Ludemann also punched § 87(2)(b). Sgt. Sinatra maintained that throughout the struggle he and PO Ludemann both repeatedly issued § 87(2)(b) verbal commands to place his hands behind his back, and that § 87(2)(b) did not comply until forced to do so. Sgt. Sinatra did not recall any officer ever placing their knee on § 87(2)(b)'s head and testified that neither he nor PO Ludemann kicked § 87(2)(b) while he was on the ground.

According to NYPD Patrol Guide section 203-11, officers must use the minimum necessary force to effect an arrest (12. Board Review).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Therefore, it is recommended that **Allegations C and D** be closed as **exonerated**.

Allegation E—Discourtesy: An officer spoke rudely to § 87(2)(b)

§ 87(2)(b) alleged that after he was placed in handcuffs, either PO Ludemann or Sgt. Sinatra said, “Okay, now you’re gonna get a fucking resisting arrest charge.”

§ 87(2)(b) was charged with resisting arrest. However, both Sgt. Sinatra and PO Ludemann denied saying this to § 87(2)(b). Further, they both testified that the other never made such a statement and that no officer ever used any profanity toward § 87(2)(b).

§ 87(2)(g)

[REDACTED]

Therefore, it is recommended that **Allegation E** be closed as **officer unidentified**.

Allegation F—Abuse of Authority: Sgt. Mark Sinatra searched the vehicle in which § 87(2)(b) was an occupant.

Allegation G—Abuse of Authority: PO Daniel Ludemann searched the vehicle in which § 87(2)(b) was an occupant.

As mentioned above, § 87(2)(b) stated that only a few minutes before the incident occurred, his friend, § 87(2)(b) placed a container of methadone through the open passenger's side window into his glove compartment. § 87(2)(b) denied, however, that narcotics were recovered from his vehicle and that he was charged with § 87(2)(b). He did not allege that any officer searched his vehicle.

However, the video (17. Board Review), between 7:37:50 and 7:39:51, revealed that both Sgt. Sinatra, on the passenger's side, and PO Ludemann, on the driver's side, placed their heads and shoulders into the into the passenger compartment of § 87(2)(b)'s vehicle. While the video does not clearly demonstrate what actions Sgt. Sinatra and PO Ludemann took inside the vehicle, Sgt. Sinatra and PO Ludemann shed light on the vehicle search during their interviews.



201502100 search.mp4

Also as mentioned above, both Sgt. Sinatra and PO Ludemann testified that when they initially approached the vehicle, they each observed an unmarked container of methadone, recognizable by its packaging, in plain view inside the center console. While PO Ludemann testified that there were loose pills on the passenger's seat, Sgt. Sinatra testified that he observed pills in an unmarked prescription bottle next to the methadone in the center console. PO Ludemann did not remember specifically if he asked § 87(2)(b) if he had a prescription for the pills or for the methadone but believed he likely did so. After § 87(2)(b) exited the vehicle, Sgt. Sinatra checked the pills and the methadone, confirming that they had no prescription labels. After § 87(2)(b) was arrested, Sgt. Sinatra and PO Ludemann searched the front of the passenger compartment, although neither recalled specifically where inside the passenger compartment they searched. Both officers testified that they searched the vehicle in order to determine if any further narcotics was located inside.

According to *People v. Galak*, 81 N.Y.2d 463 (1993), a warrantless search of a vehicle is permissible given the “automobile exception” to the search warrant requirement (15. Board Review). *Galak* enumerates the following requirements for said exception: that there be an arrest, that the officers have probable cause to believe that evidence or contraband will be found inside the vehicle, and that there exist a “flexible” nexus between the arrest and the purpose of the search § 87(2)(g)

§ 87(2)(b) Second, according to the ruling of *People v. Peterson* 173 A.D.2d 574 (1991) (16. Board Review), the discovery of contraband during a vehicle stop provides police officers with probable cause to believe that other contraband may be discovered in the vehicle and therefore justifies a contemporaneous search pursuant to the automobile exception. § 87(2)(g)

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]. It is therefore recommended that **Allegations F and G**
be closed as **unsubstantiated**.

Squad: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date